

Defendants filed a Rely on April 6, 2026.

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18.

Disposition

The Court finds and orders as follows:

1. The **PARTIES ARE ORDERED TO APPEAR.**

19. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
***HEARING ON MOTION IN RE: BIFURCATE**
FILED BY: BDM ASSOCIATION, INC, A CALIFORNIA NONPROFIT MUTUAL BENEFIT CORPORATION
TENTATIVE RULING:

Denied as moot given the parties' stipulation and Court's order regarding bifurcation.

20. 9:00 AM CASE NUMBER: MSC21-02668
CASE NAME: RENEE COTTON VS. MONICA MARSHALL
HEARING ON SUMMARY MOTION
FILED BY: GHC OF WALNUT CREEK, LLC.
TENTATIVE RULING:

Before the Court is a motion for summary judgment filed by defendants GHC of Walnut Creek, LLC and Life Generations Healthcare LLC. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Renee Cotton alleges her claims individually "and/or as the surviving heir and/or dependent" of Dorothy Marshall, the decedent, "and/or as personal representative and successor in interest" of Dorothy Marshall ("Marshall" or "Decedent"). (First Amended Complaint ("FAC") ¶ 2.) The FAC, the operative complaint in the case, alleges three causes of action for professional negligence, elder abuse, and wrongful death. The Court sustained a demurrer to the FAC by GHC of Walnut Creek, LLC and Life Generations Healthcare LLC to the first and second causes of action against them for professional negligence and elder abuse and neglect under the Elder Abuse and Dependent Adult Civil Protection Act, Welfare & Institutions Code section 15600, *et seq.* ("Elder Abuse Act"). There remains